

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Friday, August 28, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, August 28, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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20CV-03134	Leobardo Torres, et al. vs L&S Pizza, Inc., et al.
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Motion for Final Approval

The motion for final approval of class action settlement is GRANTED.

The Court has already granted preliminary approval of the settlement, including finding that the amount of the settlement is fair, adequate and reasonable. Nothing has happened since the court made its order that would cause it to change its determination.

The date of final accounting is set for May 26, 2027, at 8:15 a.m. in Courtroom 8.

The Court will sign the proposed order lodged with the court on August 20, 2026.

21CV-00712 Magali Roa-Lugo, et al. vs Daniel Unruh, et al.

Order to Show Cause Re: Dismissal – Notice of Settlement

CONTINUED pursuant to the declaration of Eric H. Godoy, filed August 21, 2026, to December 11, 2026, at 8:15 a.m. in Courtroom 8.

23CV-00532 Paulina Cardenas, et al. vs Select Harvest USA, LLC

Motion for Preliminary Approval of Class action & PAGA settlement

The motion for preliminary approval of the class action and PAGA settlement is GRANTED.

The Court finds the supplemental declaration of Kenneth A. Goldman, filed August 14, 2026, and the attachments thereto satisfy the issues previously identified by the court.

Accordingly, the Court finds the settlement terms are fair and reasonable under the particular circumstances of this case, and conditional certification of the class is appropriate.

Plaintiffs are to provide an updated proposed order that attaches the revised proposed Class Notice, which is currently attached as Exhibit 2 to the supplemental declaration of Kenneth A. Goldman.

The Court will sign the updated proposed order when lodged with the court.

A final approval hearing is set for January 28, 2027, at 8:15 a.m. in Courtroom 8. The motion for final approval and all supporting documents are to be filed no later than ten (10) court days prior to the hearing.

23CV-04368 Tony Borba, et al. vs County of Merced, et al.

Further Proceedings

Appearance required. Appear to address outcome of meet and confer efforts regarding the ongoing discovery dispute regarding the taking of plaintiff depositions.

The Court has reviewed the statements filed by Plaintiffs and Defendant, CDFW, regarding the meet and confer process. The tentative ruling is to adopt in full the July 10, 2026, report and recommendations of the Discovery Referee.

25CV-02170 City of Fresno Employees Retirement System, et al. vs City of Fresno

Case Management Conference

Appearance required.

25CV-05036 In the Matter of: Ryan Thomas Schofield

Hearing: In Camera

Appearance required.

26CV-02942 People vs. 1,627.00 U.S. Currency

Motion to Dismiss or Deny Forfeiture Petition Due to Lack of Proper Service and Filing Not Timely

The motion to dismiss or deny the forfeiture petition is DENIED.

Although the petition was not filed within thirty (30) days after Claimant filed his claim, the petition is not dismissed or denied as it was filed within one year of the seizure of the property. (Health & Saf. Code § 11488.4, subd. (a)(2).) Accordingly, the motion is denied.

Motion to Stay Forfeiture Procedures Pending Resolution of Criminal Charges

The motion to stay forfeiture proceedings is GRANTED.

This matter is stayed pending the resolution of the criminal proceedings.

A status hearing is set for February 24, 2027, at 8:15 a.m. in Courtroom 8.

26CV-02961 People vs \$6,917.00 US Currency

Motion to Dismiss or Deny Forfeiture Petition Due to Lack of Proper Service and Filing Not Timely

The motion to dismiss or deny the forfeiture petition is DENIED.

Although the petition was not filed within thirty (30) days after Claimant filed his claim, the petition is not dismissed or denied as it was filed within one year of the seizure of the property. (Health & Saf. Code § 11488.4, subd. (a)(2).) Accordingly, the motion is denied.

Motion to Stay Forfeiture Procedures Pending Resolution of Criminal Charges

The motion to stay forfeiture proceedings is GRANTED.

This matter is stayed pending the resolution of the criminal proceedings.

A status hearing is set for February 24, 2027, at 8:15 a.m. in Courtroom 8.

26CV-03197

Michelle Agosto vs Diana Morales

Motion for Relief from Default and Default Judgment, if Entered [CCP 473 (d)]

Defendant's motion for relief from entry of default is GRANTED and the default entered on July 21, 2026, against defendant, Diana Morales, is SET ASIDE.

Under Code of Civil Procedure section 473, subdivision (b), a motion for relief from entry of default brought within six months of default is appropriate where the moving party has made an adequate showing of mistake, inadvertence, or excusable neglect. Defendant's motion establishes erroneous reliance on representations that an extension to respond to the lawsuit would be granted. The motion was timely filed, within a week of the entry of default. Plaintiff has failed to establish any prejudice that she would suffer if the default is set aside, apart from prosecuting the matter on the merits.

Defendant is to file their proposed answer within ten (10) days of this court's order.

26CV-04302

Anjelina Trevino vs Anessa Reyes

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing and temporary orders on Respondent has been filed with the court.
